

		the fraud was motivated by the malicious desire to inflict injury upon the victim. The pleading of fraud is sufficient.” (<i>Stevens v. Superior Court</i> (1986) 180 Cal.App.3d 605, 610-611 [citations omitted.]) As discussed above, Plaintiffs have sufficiently alleged a cause of action for fraud. <u>Attorneys’ fees</u> Plaintiffs have not alleged any contract, statute or law which allows for the recovery of attorneys’ fees or statutory damages. <u>MOTION NO. 5 – MOTION TO QUASH BY SPECIALLY APPEARING DEFENDANTS TIMOTHY NAVARRO AND PATRICK WINEMILLER</u> The Court GRANTS Defendants’ motion to strike Plaintiffs’ allegations and prayer for attorneys’ fees (Compl. ¶¶ 91, 96, 108, 118, 125, Prayer ¶ 3) with 10 days leave to amend. Specially Appearing Defendants’ Timothy Navarro and Patrick Winemiller’s Motion to Quash Service of Summons and Complaint is CONTINUED to [REDACTED]. The Court notes Plaintiffs have filed a Motion to Seal Exhibits F through N of the Declaration of Kieran Ringgenberg supporting the Opposition to the Motion to Quash and any references to them set for hearing on 1/28/27. (ROA 152.) As the Motion to Seal includes documents relevant to the Court’s determination of the Motion to Quash, the Court CONTINUES the hearing to after the hearing on the Motion to Seal.
9	25-01536466 <i>Inda vs. DiSegna</i>	Motion to Strike Defendants Joseph Disegna and Kim Disegna’s motion to strike portions of plaintiffs Victor Inda and Miriam Azizi’s Complaint is GRANTED with 20-days leave to amend. Defendants seek to strike paragraphs 19, 20, 34, 37, 48, 49, 52 and prayer (B) (incorrectly referenced as “Page 9, ¶ 52”) of Plaintiff’s Complaint. Civil Code Section 3294, subdivision (a) provides for punitive damages: “In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” Section 3294, subdivision (c) defines malice, oppression and fraud as follows: “(1) ‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. [¶] (2) ‘Oppression’ means despicable conduct that

		subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. [¶] (3) 'Fraud' means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." In support of their claim for punitive damages Plaintiffs allege Defendants refused to accept payment of rent owed pursuant to the subject residential lease from Mercy House on behalf of Plaintiffs. (Complaint, ¶ 18.) Defendants engaged in a patten of harassment and intimidation to force Plaintiffs to leave their leased home and that Defendants made false allegations of fraud and squatting about Plaintiffs to law enforcement in an improper attempt to intimidate Plaintiffs into leaving their home. (Complaint, ¶¶ 19-20.) Plaintiffs also contend defendant Joseph DiSegna initiated an unlawful detainer to evict Plaintiffs, and their minor son claiming failure to pay rent, even though Defendants refused to accept rent payment tendered on behalf of Plaintiffs Victor Inda and Miriam Azizi. (Complaint, ¶ 21.) These allegations are conclusory and insufficient to allege malice, fraud, or oppression. Therefore, the Motion to Strike punitive damages is GRANTED with 20-days leave to amend. Moving Defendants to give notice.
10	25-01472504 <i>Maleki vs. Schumacher & Maleki, LLC</i>	Motion for Summary Judgment and/or Adjudication Plaintiff/Cross-Defendant Majid Maleki's Motion for Summary Adjudication is GRANTED as to the Complaint and DENIED as to the Cross-Complaint. Plaintiff/Cross-Defendant moves for summary adjudication of (1) the first cause of action in the Complaint for dissolution, (2) the first cause of action in the Cross-Complaint for breach of fiduciary duties, (3) the second cause of action in the Cross-Complaint for breach of contract, and (4) the third cause of action in the Cross-Complaint for embezzlement. Plaintiff's request for judicial notice (ROA 93) is granted as to filings in this matter and filings with the Secretary of State related to the subject LLC. Defendant's request for judicial notice (ROA 157) is granted to the extent it seeks judicial notice of contents of the register of actions in this case and denied to the extent it seeks judicial notice of the truth of conclusions to be drawn from such filings or lack thereof. The Court exercises its discretion to consider Defendant's separate statement in opposition because the hearing date was continued and Plaintiff had adequate time to respond.